

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

Samsung Electronics America, Inc.

v.

COSCO Shipping Lines Co. Ltd.

v.

**Samsung Electronics Co., Ltd., Samsung SDS Asia Pacific Pte Ltd., and Samsung
Electronics Logitech Co., Ltd.**

**RESPONDENT COSCO's MOTION TO SUPPLEMENT THE RECORD RELATED TO
COMPLAINANT'S MOTION TO COMPEL**

COSCO respectfully moves for an order to permit it to supplement the record related to the Motion to Compel (Doc. No. 95) of Complainant Samsung Electronics America, Inc. ("SEA") as follows: 1) inform the Presiding Officer of COSCO's proposal to SEA to resolve SEA's motion for the disclosure of the names and email addresses for COSCO documents located in China by COSCO's production of those documents with names and email addresses of COSCO personnel (the "Proposed Resolution") in compliance with requirements of Chinese law, and 2) to submit the Declaration of Jihong Chen, attached as **Exhibit 1**, concerning the application and requirements of Chinese law concerning the cross-border production of documents from China, including for production under COSCO's Proposed Resolution.

In support of this motion,¹ COSCO states as follows:

¹ COSCO is mindful of the Presiding Officer's direction to the parties not to file any "further discovery motions ... until the outstanding motions are decided." Doc. No. 104 at 3. As COSCO understands that direction, the instant motion is not a discovery motion because it adds

1. In her February 26 Order, the Presiding Officer encouraged “the parties to confer and hopefully resolve some of their outstanding discovery issues.” Doc. No. 104 at 3 n.4. The next day COSCO requested a call with counsel for SEA to discuss the Proposed Resolution, and when SEA’s counsel stated that they were unavailable until the afternoon of March 2, COSCO outlined an option for the Proposed Resolution via email. *See Exhibit 2*. In that email, COSCO informed SEA that its proposal would be in compliance with Chinese law and would (a) address SEA’s argument that it needs the names and email addresses of COSCO personnel to identify potential deponents, while (b) avoiding more onerous requirements for review by Chinese government authorities if the Presiding Officer were to issue an order compelling COSCO to produce unredacted documents located in China. *Id.* Consistent with the declaration of Chinese counsel, COSCO advised SEA that under Chinese law, COSCO may produce the names and email addresses of COSCO employees by complying with other provisions of Chinese law, *only if there is no order compelling production*. *See also* Ex. 1 at ¶ 13. Absent an order, such production is considered voluntary. *Id.* However, if COSCO is ordered to produce the China documents, under Chinese law it may not produce the documents unless and until the production is reviewed and approved by the relevant Chinese authorities. *Id.* There is no statutory limit on the time any such review would take. *Id.*

2. SEA did not respond until the afternoon of March 2, 2026, shortly before the parties were to have a call to discuss COSCO’s proposal. *See* Ex. 2. SEA postponed the call among counsel and suggested that SEA likely would not agree to COSCO’s Proposed Resolution. *See id.*

no discovery issues and is designed to assist the Presiding Officer in making a decision on the existing discovery motions.

3. Counsel for the parties conferred to discuss the Proposed Resolution on March 4, 2026, and that discussion was followed by an email memorializing COSCO's Proposed Resolution. *See Exhibit 3.* COSCO confirmed that it would produce unredacted names and email addresses of COSCO employees for documents located in China and proposed notifying the Presiding Officer promptly that SEA's Motion to Compel production of documents located in China with unredacted names and email addresses is moot. *See id.* COSCO also agreed that it would move to supplement the record regarding the Proposed Resolution and include a declaration from Chinese counsel further explaining the application of Chinese law, including the requirement that COSCO must seek the review and approval of government authorities before producing documents located in China if the Presiding Officer issues an order compelling production of documents located in China. *See id.*

4. After further review of COSCO's Proposed Resolution, SEA declined to accept it as sufficient. *See Ex. 3.*

5. Despite SEA's refusal to accept the Proposed Resolution as a measure to at least partially resolve, and moot, SEA's Motion to Compel, COSCO still intends to proceed in good faith, and in a manner consistent with Chinese law, to produce unredacted names and email addresses of COSCO employees for documents located in China.

6. COSCO respectfully submits that the Declaration of Jihong Chen (Ex. 1) should be included in the record with respect to SEA's motion to compel. That declaration provides support for COSCO's Proposed Resolution. Furthermore, as COSCO stated in its Emergency Motion for Enlargement of Time to File Response to Complainant's Motion to Compel (Doc. No. 98) and in its Opposition to SEA's Motion To Compel (Doc. No. 102), the declaration is necessary to explain the requirements of Chinese law for the protection of personal information

and the security of data, and the potential consequences to COSCO of violating the law. Of course, Chinese counsel is far more qualified and experienced than U.S. attorneys to opine about Chinese law. COSCO maintains that it would be unduly prejudiced in the absence of consideration of the declaration by the Presiding Officer. By contrast, supplementing the record will neither materially delay resolution of SEA's Motion to Compel, which remains pending, nor will it unduly prejudice SEA.

7. Neither the information about the Proposed Resolution nor the Declaration from Jihong Chen was available when the parties submitted briefing on SEA's Motion to Compel. Supplementing the record with such information is appropriate to ensure that the Motion to Compel is resolved properly on the substantive merits. *Cf. NAACP Legal Def. & Educ. Fund, Inc. v. Barr*, 496 F. Supp. 3d 116, 126 n.2 (D.D.C. 2020) (granting request to supplement the record after summary judgment motions were fully briefed because the new documents contained "new relevant facts," and "Defendants have not shown that they will be prejudiced" by supplementation of the record).

8. Counsel for COSCO conferred in good faith with counsel for SEA concerning this motion to supplement the record on March 2 and March 4, 2026, and SEA has not consented to the requested relief.

Dated: March 4, 2026

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CERTIFICATE OF SERVICE

I hereby certify that on this 4^h day of March, 2026 I have served the foregoing document as well as the accompanying exhibits by electronic mail upon the following persons:

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